MASTER SOFTWARE DEPLOYMENT AND ESCROW AGREEMENT
EXECUTED AT NEW DELHI ON THIS 15TH DAY OF JANUARY, 2024
BY AND BETWEEN: Apex FinTech Innovations Ltd. ('Customer') AND Zenith Cloud Technologies Pvt. Ltd. ('Vendor')
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RECITALS & OPERATIVE COVENANTS:
WHEREAS Vendor possesses algorithmic software for automated core loan disbursements and settlements;
AND WHEREAS Customer desires to license said software and engage Vendor for turnkey deployment;
NOW THEREFORE THE PARTIES AGREE AS FOLLOWS:

CLAUSE 2: CONTRACTUAL CONSIDERATION & PAYMENT MILESTONES:
Total Contract Price: INR 8,50,00,000/- (Eight Crores Fifty Lakhs) plus applicable GST.
Milestone 1: 50% (INR 4,25,00,000/-) payable upon execution and delivery of Source Code Escrow Confirmation.
Milestone 2: 30% (INR 2,55,00,000/-) payable upon User Acceptance Testing (UAT) sign-off.
Milestone 3: 20% (INR 1,70,00,000/-) payable upon 90 days of commercial live production.

CLAUSE 9: ESCROW DEPOSIT AND TECHNICAL SPECIFICATIONS:
Vendor covenants to deposit source code and encryption keys into escrow with CertiGuard Labs or any mutually approved escrow custodian. In the event of dispute over vendor capabilities, audit rights shall be exercised.

CLAUSE 18: GOVERNING LAW AND EXCLUSIVE DISPUTE RESOLUTION (ARBITRATION):
18.1 This Agreement shall be governed by and construed in accordance with the substantive laws of India.
18.2 All disputes, controversies, or claims arising out of or in connection with this Agreement, including any question regarding its existence, validity, breach, or termination, shall be referred to and finally resolved by Arbitration administered by the Delhi International Arbitration Centre (DIAC) in accordance with DIAC Rules.
18.3 The seat and venue of arbitration shall be New Delhi. The arbitral tribunal shall consist of a Sole Arbitrator.
18.4 The parties expressly agree that breach of delivery milestones shall constitute a purely civil commercial breach remediable exclusively through liquidated damages capped at 15% of contract value or specific performance. Neither party shall initiate penal or criminal proceedings in respect of milestone delay or technical variances.

IN WITNESS WHEREOF, the authorized signatories have executed this Agreement on 15/01/2024.
Sd/- Vikramaditya Singhania (Apex FinTech) | Sd/- Rajesh Malhotra (Zenith Cloud)